

Court No. - 32

Case :- WRIT - C No. - 39425 of 2019

Petitioner :- Ram Charan @ Ram Lakhan

Respondent :- State Of U.P. And 02 Others

Counsel for Petitioner :- Sudhanshu Kumar
Singh

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned demand notice dated 23.02.2019 issued by respondent no. 3 for recovering the amount of Rs. 5,62,293/- from the petitioner.

(ii) Issue a writ order or direction in the nature of Mandamus directing the respondents to decide and consider the representation of the petitioner dated 08.11.2019."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for the reasons that there is availability of statutory remedy. However, in case, the petitioner approaches the appropriate authority for redressal

of his grievance within 15 days from today along with a certified copy of this order, his application may be considered and decided by the said authority within 15 days thereafter in accordance with law by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 3.12.2019

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